

11. 9:00 AM CASE NUMBER: C26-00203
CASE NAME: RACHEL SHUMATE VS. DIEGO MIJARES
MOTION TO COMPEL ARBITRATION
FILED BY: LYFT INC.,
TENTATIVE RULING:

This motion has been **WITHDRAWN** by the moving party. See Notice of Withdrawal filed September 21, 2026.

12. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: FIRST CLASS PROPERTIES, LLC
TENTATIVE RULING:

On April 28, 2026, defendant First Class Properties, LLC (“Defendant”) filed a Motion to Strike portions of plaintiff Jessica Jackson’s (“Plaintiff”) Complaint (the “Motion to Strike”). The Motion to Strike was set for hearing on September 28, 2026.

Background and Analysis

No opposition was filed. However, Plaintiff filed a First Amended Complaint on August 25, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer or motion to strike before the hearing, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the motion was directed. See *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Motion to Strike off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike is ordered **OFF-CALENDAR** as moot.